

26NWLC04000 26NWLC04000

County: los-angeles

Division: Civil Law and Motion

Department: Y

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Case Number: 26NWLC04000 Hearing Date: September 17, 2026 Dept: Y

26NWLC04000: CAPITAL ONE, N.A., SUCCESSOR BY MERGER TO DISCOVER BANK vs RYAN VACA

Tentative Ruling:

The Court has read and considered the Motion to Set Aside Default and Default Judgment ("Motion") filed by Defendant Ryan Vaca ("Defendant") on August 26, 2026. Defendant served the Motion on Plaintiff Capital One, N.A. ("Plaintiff"). No opposition has been filed by Plaintiff.

The Court notes that Default was entered by the Clerk on July 14, 2026. Default Judgment was entered by the Clerk on August 3, 2026.

The Court notes that Proof of Service of Summons by a registered process server by personal service was filed with the Court on February 19, 2026 creating a presumption of service under Evidence Code section 647. Defendant's declaration, which was signed under penalty of perjury, states that Proof of Service indicates personal service on a "brown-haired white female"; however, Defendant is male. Defendant also states that he does not live at the address identified in the Proof of Service and does not know who lives there. Defendant further provides evidence (Uber trip details) demonstrating that he was not at that address at the time of service.

Here, the Court finds that Defendant has rebutted the presumption of service and that there was no actual notice. "Actual notice," within the meaning of Code of Civil Procedure § 473.5, means genuine knowledge by the defendant, and has been strictly construed. Relief under the statute is liberally granted to defendants so that cases may be resolved on their merits. *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 547-548.

Pursuant to Code of Civil Procedure §§ 473(d) and 473.5, the Court will GRANT Defendant's Motion and set aside the Default Judgment.

The Court grants Defendant 30 days leave to file a responsive pleading with the Court and serve it on Plaintiff.

The Court will set a OSC Re Status of Pleadings on September 17, 2027 at 8:30 a.m. in Department Y of the Norwalk Courthouse. The Court anticipates that this date will become the trial date when the responsive pleading is filed by Defendant.

Clerk to give notice.